2025 P Cr. L J 1769

[Gilgit-Baltistan Chief Court]

Before Ali Baig, C.J

ABDUL WAQAR---Petitioner

Versus

The STATE---Respondent

Crl. Misc. No. 125 of 2025, decided on 23rd May, 2025.

(a) Criminal Procedure Code (V of 1898)---

----S. 497---Penal Code (XLV of 1860), Ss. 365-B, 496-A, 494 & 511---Abduction, enticing or taking away or detaining with criminal intent a woman, marrying again during lifetime of husband or wife, attempted rape---Bail, dismissal of---Allegations against the petitioner-accused were that he abducted the wife of complainant with the intention to commit fornication with her---Perusal of record transpired that earlier marriage of the alleged abductee subsisted and she was wedded wife of the complainant of the case and there was no record regarding the divorce effected between the spouses---Said fact had also been admitted by the alleged abductee by appearing before Trial Court that she hated her husband and she had been given into the Nikah of the complainant by her father without her consent and willingness and now she wanted to marry the petitioner/accused---Present petitioner/accused also appeared before the Trial Court and had stated that he would again take the abductee to K-(Kohistan) if he was released on bail---Hence, Nikah over Nikah was not permissible in Islam---Said act of the petitioner/accused did not entitle the petitioner for concession of bail at this stage---Furthermore, the petitioner/accused was directly charged in the FIR with specific role and offence under S.365-(B) P.P.C fell within the ambit of prohibitory clause of S.497 Cr.P.C.---So far as grant of bail to the co-accused of the petitioner/alleged abductee was concerned, she was female/woman therefore, the Trial Court had granted post arrest bail in favour of co-accused of the present petitioner/accused being woman, thus rule of consistency did not apply to the case of the present petitioner/accused---Bail petition was dismissed, in circumstances.

2017 MLD 349; 2002 PCr.LJ 598; 2022 MLD 1078; 2019 MLD 786; 2008 PCr.LJ 1451; 2016 GBLR 127 and 2009 YLR 112 rel.

(b) Criminal Procedure Code (V of 1898)---

----S. 497---Bail order---Observations of the Court---Scope---Observations made in the bail order are entirely tentative in nature which shall not prejudice the final findings to be recorded by the Trial Court after recording pro and contra evidence.

Umer Hussain and Arif Ullah for Petitioner/assused.

Dy. A.G. Malik Sherbaz for the State.

Fayaz Ahmed for the Complainant.

Date of hearing: 20th May, 2025.

ORDER

ALI BAIG, C.J.---The Petitioner/accused namely Abdul Waqar has filed the instant bail petition under section 497 Cr.P.C for grant of post arrest bail in criminal case bearing FIR No. 07/2025 for offences under sections 365-B, 496-A and 494/511 P.P.C. registered at Police Station City Gahkuch District Ghizer.

2. Brief facts of the case as disclosed in the FIR are that complainant namely Sadat son of Qasim resident of Ghakuch Khari submitted an application before the SHO P.S City Gahkuch District Ghizer regarding missing of his wife Mst. Shahina. The SHO City Gahkuch started inquiry under section 157 Cr.P.C. During inquiry the complainant Sadat submitted a subsequent application by stating therein that his wife has been abducted by one namely Abdul Waqar son of Abdul Qudoos resident of Khili Kohistan presently residing at Sakarkui Gilgit with the intention to commit fornication with her. The complainant also expressed his apprehension that the petitioner/ accused might have married with her/abductee despite existence of her previous Nikah with him/complainant.

3. After receipt of the complaint the SHO concerned has registered the FIR bearing No. 07/2025 and started investigation of the case. The concerned SHO arrested the present petitioner/ accused and co-accused Mst. Shahina. After completion of formal investigation the SHO concerned got committed the present petitioner/ accused to judicial lock-up at Gahkuch Ghizer.

4. The present petitioner/accused had filed an application before the learned District and Sessions Judge, Ghizer for grant of post arrest bail. The learned District and Sessions Judge, Ghizer after hearing arguments on behalf of both the parties, has dismissed the bail petition filed by the present petitioner/accused, vide order dated 07-03-2025 passed in B.A No. 129/2025. Hence, the instant bail petition before this Court.

5. The learned counsel appearing on behalf of the petitioner/accused contended that the petitioner/accused is innocent and he has falsely been implicated in the instant case with mala fide intention by the police in collusion with the complainant. The learned counsel for the petitioner/accused further argued that the instant FIR against the petitioner is fake, false, self-made and fabricated. The learned counsel for the petitioner/ accused further submitted that there is 2 days unexplained delay in lodging of FIR. The learned counsel for the petitioner/ accused further submitted that offences under sections 365-B, and 496-A and B do not attract to the case of the petitioner/accused, while offences under sections 494/511 P.P.C. do not fall within the ambit of prohibitory clause of section 497 Cr.P.C. The learned counsel for the petitioner/accused further submitted that petitioner/accused is juvenile one and challan of the case has not been submitted before the Court of competent jurisdiction so far. The learned counsel for the

petitioner/ accused further submitted that co-accused Mst Shahina has been released on bail hence, rule of consistency applies to the case of petitioner/accused. The learned counsel for the petitioner/ accused further submitted that the case of the present petitioner/ accused is required further inquiry. The learned counsel for the petitioner/accused further submitted that the prosecution has failed to connect the present petitioner/ accused with the alleged offences and there is no any independent ocular evidence available on the record against the petitioner/accused and as such serious doubts exist in the present case, hence the case of the petitioner falls within the ambit of further inquiry. The learned counsel for the petitioner/accused has relied on judgments of superior Courts reported as 2017 MLD 349 Lahore 2002 PCr.LJ 598 Lahore, 2022 MLD 1078 Sindh, 2019 MLD 786 G.B Chief Court.

6. On the other hand, the learned DAG and learned counsel for the complainant controverted the arguments advanced by the learned counsel for the petitioner/accused by contending that the present accused/ petitioner is directly nominated in the FIR with specific role. The learned DAG and learned counsel for the complainant further contended that section 365(B) P.P.C. falls within the ambit of prohibitory clause of section 497 Cr.P.C. The learned DAG and learned counsel for the complainant further submitted that co-accused of the petitioner Namely Mst. Shahina is wedded wife of complainant. The learned DAG and learned counsel for the complainant further submitted that rule of consistency does not apply to the case of the petitioner/accused as co-accused of the petitioner is female. The learned DAG further submitted that incomplete challan has been submitted in the Court and trial of the case has commenced therefore, the petitioner/accused is not entitled for concession of bail. The learned DAG and learned counsel for the complainant have relied on judgments of superior Courts reported as 2008 PCr.LJ 1451 Lahore, 2016 GBLR 127 Supreme Appellate Court G.B and 2009 YLR 112 Karachi.

7. I have heard the learned counsel for the parties at a considerable length and have minutely gone through the available record with their able assistance.

8. Perusal of record it transpires that earlier marriage of the alleged abductee Mst. Shahina subsisted and she is weded wife of one Sadat, the complainant of this case and there is no any record regarding the divorce effected between the spouses. This fact has also been admitted by the alleged abductee by appearing before trial court that she hate her husband and she has been given into the Nikah of the complainant by her father without her consent and willingness and now she wants to marry to the petitioner/accused. The present petitioner/accused was also appeared before the learned trial court and has stated that he will again take the abductee to Kohistan if he is released on bail. Hence, Nikah over Nikah is not permissible in Islam. The petitioner/accused has expressed his intention that he will again take the abductee to Kohistan if he is released on bail. This act of the petitioner/accused does not entitle the petitioner for concession of bail at this stage. Furthermore, the petitioner/accused is directly charged in the FIR with specific role and offence under section 365(B) P.P.C. falls within the ambit of prohibitory clause of section 497 Cr.P.C.

9. As far as contention of the counsel for the petitioner regarding grant of bail to the co-accused of the petitioner/alleged abductee is concerned, she is female/woman therefore, the learned trial court has granted post arrest bail in favour of co-accused of the present petitioner/accused being woman, thus rule of consistency does not apply to the case of the present petitioner/accused.

10. For what has been discussed above, I am not inclined to grant post arrest bail in favour of the petitioner/accused at this stage. The instant bail petition being devoid of merit is hereby dismissed.

11. The observations made herein above, are entirely tentative in nature which shall not prejudice the final findings to be recorded by the learned trial court after recording pro and contra evidence. File.

JK/7/GB Petition dismissed.

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